

There is no information about who received what information (other, perhaps, than "E.H.")

There is little evidence of compliance with Insurance Code Section 10139.5(f); only conclusory statements.

There is hardly any substantive information about the proposed transfer. Thus, the Court is unable to evaluate "whether the transfer is fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents." Insurance Code, Sec. 10137. Likewise, the Court is unable to determine if the requirements of Insurance Code Section 10134 et seq. Have been met.

The application is denied without prejudice to submission of a proper application for an order approving the transfer.

Discovery Law & Motion

24. 9:01 AM CASE NUMBER: C24-02882

CASE NAME: HEATHER ABALOS VS. EDWARD HAMILTON

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FOR DEFENDANTS' FORM INTERROGATORIES AND SPECIAL INTERROGATORIES**

FILED BY: MCCAMPBELL ANALYTICAL INCORPORATED

TENTATIVE RULING:

This is defendant's motion to compel further responses to 55 special interrogatories and one form interrogatory (set one). It is unopposed.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party's failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition "creates an inference that the motion

or demurrer is meritorious”); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be construed as abandonment of the issues). Indeed, in this Court, “[f]ailure to comply with the requirements concerning filing and serving opposing and reply papers may, in the discretion of the court, be deemed cause for acting on the matter without consideration of the document filed in violation of requirements and may be deemed cause for imposing sanctions.” See the court’s website: <https://contracosta.courts.ca.gov/divisions/civil/motions-and-hearings>.

The motion is granted. Plaintiff shall serve full, verified, code-compliant further responses to the interrogatories specified in the motion within 20 calendar days of entry of the Order After Hearing.

Defendant also seeks monetary sanctions pursuant to Code of Civil Procedure Section 2030.300(d): “The court shall impose a monetary sanction...against any party...who unsuccessfully...opposes a motion to compel a further response to interrogatories...” But here, plaintiff did not oppose the motion, so the request for sanctions is denied.

25. 9:01 AM CASE NUMBER: C24-02882

CASE NAME: HEATHER ABALOS VS. EDWARD HAMILTON

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANTS'
REQUEST FOR PRODUCTION OF DOCUMENT**

FILED BY: MCCAMPBELL ANALYTICAL INCORPORATED

TENTATIVE RULING:

This is defendant’s motion to compel further responses to defendants’ request for production of documents (set one). The motion is limited to those 35 document requests identified in defendants’ August 27, 2025 letter to plaintiff’s counsel. The motion is unopposed.

Pursuant to Cal. Code of Civ. Proc. § 1005(b), “all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing.” No timely opposition was filed.

California Rules of Court, Rule 8.54(c) states, “A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]

Moreover, California courts recognize that a party’s failure to file opposition supports treating the motion as unopposed and may be construed as a concession/abandonment of any argument against the requested relief. See e.g., *Sexton v. Superior Court* (1997) 58 Cal. App. 4th 1403, 1410 (noting local rule providing that failure to timely file opposition “creates an inference that the motion or demurrer is meritorious”); *Herzberg v. County of Plumas* (2005) 133 Cal. App. 4th 1, 20 (failure to oppose may be